

	Case Name	Tentative
50	<i>Capital One, N.A. vs. Jose</i>	The motion of defendant Jomy Ovelil, sued as Jomy Jose, for an order compelling plaintiff Capital One, N.A. to comply with his debt validation request is DENIED. In the context of this case, there is no legal provision for the court to issue the order requested. If Defendant were to propound discovery requests on Plaintiff seeking the information about the debt alleged in the complaint, the court could compel compliance with those requests as provided for in the Discovery Act. See e.g. Code Civ. Proc. §§ 2030.020, 2030.030, 2030.290 ,2030.300, 2031.020, 2031.020, 2031.300, 2031.310. However, in the absence of an obligation by Plaintiff to act in connection with this case, the court cannot compel Plaintiff to act.
51	<i>Chen vs. General Motors LLC</i>	No tentative ruling.
52	<i>Off calendar</i>	
53	<i>Global Venture LLC vs. Global LA Investing LLC</i>	Plaintiff Global Venture, LLC's motion for summary adjudication is granted as to (1) Plaintiff's first cause of action for breach of Promissory Note against Defendants Global LA and Global AZ and (2) Plaintiff's second cause of action for breach of Secured Repayment Note with Personal Guaranty, as amended, against Defendants Global LA, Global AZ, Mohammad Azadzoi and Zarmina Azadzoy. The motion is denied as to the fourth cause of action against Defendant EM Investment, LLC for judicial foreclosure regarding 11685 Picturesque Drive, Studio City, CA 91604, APN No. 2369-033-013.

The motion is **granted** as to the fourth cause of action for judicial foreclosure regarding 580 N Hargrave Street, Banning, CA 92220, APN 541-081-001, 8041 Bulwer Drive, Los Angeles, CA 90046, APN 5565-030-007, and 3929 Fredonia Drive, Los Angeles, CA 90068, APN No. 2380-002-033.

Plaintiff's request for judicial notice is **granted**. Defendant EM Investment Group, LLC's request for judicial notice is also **granted**.

Plaintiff's evidentiary objections are all **overruled**.

Defendants' deficient separate statement

Code Civ. Proc., § 437c(b)(3) provides:

The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion.

In addition, CRC, Rule 3.1350 (f) states that for each fact, "the response must unequivocally state whether that fact is "disputed" or "undisputed."

While the Court's ruling is based on the substance of the parties' arguments and

evidence, it is worth pointing out that in response to a number of Plaintiff's facts, Defendants do not clearly state whether the facts are disputed or undisputed in the separate statement. (ROA 161; see facts 2-5, 8-11, 15-18, 20-23, 25-26, 31.) The court in *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086 notes that "subdivision (b) of section 437c allows the court, in its discretion, to grant summary judgment if the opposing party fails to file a proper separate statement," but cautions that "this provision does not authorize doing so without first determining that the moving party has met its initial burden of proof."

Substantive merits

Plaintiff's first cause of action for breach of Promissory Note against Defendants Global LA and Global AZ

The elements of breach of contract/guaranty are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*Miles v. Deutsche Bank National Trust Company* (2015) 236 Cal.App.4th 394, 402.)

Plaintiff demonstrates that Defendants Global LA, Global AZ, and Plaintiff entered into a written promissory note whereby Defendants Global LA and Global AZ agreed to borrow \$500,000 from Plaintiff; Plaintiff performed under the promissory note by lending Defendants \$500,000; The promissory note required Defendants to repay the \$500,000 principal by December 1, 2023; and Defendants

failed to repay any of the \$500,000. (ROA 161, SS Fact Nos. 1-5.)

Defendants do not effectively dispute these facts. Defendants state in their separate statement, that they did not borrow the money, that the money was for mortgages and repairs of the property, and the “note was wrapped into the November 2023 Note.” (ROA 161.)

Defendant Azadzoi admitted multiple times during his deposition that the \$500,000 was never paid back. (Azadzoi Depo. at 45:17-18, 46:10-18, 49:16-21.) In Azadzoi’s declaration, he acknowledges signing the promissory note. (Azadzoi Decl., ¶ 27.) He states that he attempted to discuss “repayment, extension or a workout arrangement” with Plaintiff, but was not able to reach Plaintiff. (Azadzoi Decl., ¶ 28.) Defendants fail to show they were prevented from repaying the \$500k promissory note; only that Plaintiffs did not respond to their communication regarding the payment. This does not excuse Defendants’ breach.

Plaintiff has established that Defendants breached the promissory note and Defendants have not shown a triable issue of material fact.

Plaintiff’s second cause of action for breach of Secured Repayment Note with Personal Guaranty, as amended, against Defendants Global LA, Global AZ, Mohammad Azadzoi and Zarmina Azadzoy

Plaintiff demonstrates that Plaintiff and Defendant Global LA executed a secured repayment note in the amount of \$2,828,353; Defendant Azadzoi and his wife Defendant Azadzoy personally guaranteed Defendant

Global LA's obligations under the Secured Repayment Note; Defendants received the \$2,828,353; Plaintiff and Defendant Global LA signed an amendment to the Secured Repayment Note, which increased the principal amount to \$2,830,253; repayment of the principal amount was due by November 3, 2024; and Defendants are in default in the amount of \$1,614,253, not including interest, legal fees, or costs. (SS Fact Nos. 6-12.)

Defendants attempt to dispute these facts, arguing that there was a failure of consideration for the notes. This is not supported by the evidence as Azadzoi admitted at his deposition that the initial \$2.8 million was wired to escrow for ten properties that were purchased. (Azadzoi Depo at 57:6-58:8, 60:12-24, 62:11- 17, 92:2-11.)

To the extent that Azadzoi's declaration filed with the opposition to the MSA contradicts his deposition testimony, the Court disregards the declaration statements. In opposing a motion for summary judgment, a party is not permitted to submit a declaration to contradict their own deposition testimony in order to create a triable issue of material fact. (See *Visueta v. Gen. Motors Corp.* (1991) 234 Cal.App.3d 1609, 1613 ["Admissions or concessions made during the course of discovery govern and control over contrary declarations lodged at a hearing on a motion for summary judgment"; see also *State Farm Mut. Auto Ins. Co. v. Eastman* (1984) 158 Cal.App.3d 562, 573 ["The issue raised is whether a party can rely on contradictions in his own testimony to create a triable issue of fact for purposes of a summary judgment motion. We answer this question in the negative."].)

	Defendants additionally argue that the Note was signed under economic duress, but again, fails to submit evidence of this. Defendants cite to Azadzoi's testimony that the deeds of trust signed in reliance on wire transfers that were promised but never made "turned my business upside down" and left him without the promised funds while encumbering his entities' properties. (Azadzoi Depo. at 75:1-10.) This is not economic duress. It has been established that Defendants had received the \$2.8 million when they signed the Note. An alleged promise to pay additional funds does not constitute a threat or oppressive conduct. Defendants' argument that there is a triable issue of fact as to the amount owed under the Note is similarly unsupported by the evidence. Defendants contend that Plaintiff's calculation of \$1,614,253 as the remaining balance (\$2,828,353 - \$1,216,000) omits a number of credits. (Defendants' Responses to Special Interrogatory No. 61; Azadzoi Depo. at 132:13-133:18, 171:2-173:12.) Examining the evidence shows that these credits that Defendants reference were already part of Plaintiff's calculation. For example, both parties cite to the same portion of Azadzoi's deposition. (Azadzoi Depo. at 141:15-144:13 [stating that an estimated \$1,216,000 was returned], and at 96:2- 144:13, authenticating investment statement.) Adding up Defendants' numbers amounts to \$1,215,000...just under the \$1,216,000 that Plaintiff used in its calculation. Defendants also fail to provide any evidence supporting its additional arguments that Plaintiff received additional funds in repayment
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	of the Note, or that any mortgage payments were to be credited to the amount owed. The Court accordingly finds that Plaintiff has established breach of the Secured Repayment Note with Personal Guaranty; Defendants do not create a triable issue of material fact with respect to the Note at issue. Plaintiff's fourth cause of action for judicial foreclosure regarding 580 N Hargrave Street, Banning, CA 92220, APN 541-081-001; (4) Plaintiff's fourth cause of action for judicial foreclosure regarding 8041 Bulwer Drive, Los Angeles, CA 90046, APN 5565-030-007; (5) Plaintiff's fourth cause of action for judicial foreclosure regarding 11685 Picturesque Drive, Studio City, CA 91604, APN No. 2369-033-013; and (6) Plaintiff's fourth cause of action for judicial foreclosure regarding 3929 Fredonia Drive, Los Angeles, CA 90068, APN No. 2380-002-033. "The beneficiary or trustee named in a deed of trust . . . with power of sale upon real property or any interest therein to secure a debt or other obligation, . . . shall have the right to bring suit to foreclose the same in the manner and subject to the provisions, rights and remedies relating to the foreclosure of a mortgage upon such property." (Code Civ. Proc., § 725a.) "When a borrower defaults on a loan secured by real property, the lender can use one of three procedures to recover the debt. First, the lender can initiate a judicial foreclosure by filing a lawsuit." (Coker v. JPMorgan Chase Bank, N.A. (2016) 62 Cal.4th 667, 672 [citing CCP, § 725a]; see also Arabia v. BAC Home Loans Servicing, L.P. (2012) 208 Cal.App.4th 462, 472 ["right to
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	foreclose thus arises out of an obligation (e.g.,) the promissory note and related deed of trust.”)] Plaintiff submits evidence that in November of 2023, Plaintiff and Defendant Global LA executed a Secured Repayment Note in the amount of \$2,828,353. (SS Fact No. 13, 18, 23, 28.) Global LA’s obligations under the Secured Promissory Note were secured by deeds of trust recorded on the four real properties located at 580 N Hargrave Street, Banning, CA; 8041 Bulwer Drive, Los Angeles, CA; 11685 Picturesque Drive, Studio City, CA; and 3929 Fredonia Drive, Los Angeles, CA. (SS Fact No. 14, 19, 24, 29.) Defendants received the \$2,828,353 under the Secured Repayment Note. (SS Fact No. 15, 20, 25, 30.) In January of 2024, Plaintiff and Defendant Global LA signed a First Amendment to Secured Repayment Note. (SS Fact No. 16, 21, 26, 31.) Defendants are in default under the Secured Repayment Note, as amended, in the amount of \$1,614,253, not including interest, legal fees, or costs. (SS Fact No. 17, 22, 27, 32.) Defendants submit the Secured Repayment Notes as well as the Deeds of Trust for the four properties at issue as Exs. 3, 6, and 8-11. The Deeds of Trust for each of the four properties expressly grants Plaintiff the properties “WITH POWER OF SALE,” for the purpose of securing Defendants’ loan obligations. (Plaintiff’s Exs. 8-11.) In opposition, Defendants argue that the secured properties have already been foreclosed upon by third-party lien holders, with Defendants receiving no proceeds, citing to the Azadzoi Depo.
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